

Showing contexts for: **Lalita Kumari** in [Lalita Kumari vs Govt.Of U.P.& Ors on 12 November, 2013](#)

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P.Sathasivam, CJI.

1) The important issue which arises for consideration in the referred matter is whether “a police officer is bound to register a First Information Report (FIR) upon receiving any information relating to commission of a cognizable offence under [Section 154](#) of the Code of Criminal Procedure, 1973 (in short ‘the Code’) or the police officer has the power to conduct a “preliminary inquiry” in order to test the veracity of such information before registering the same?”

2) The present writ petition, under [Article 32](#) of the Constitution, has been filed by one **Lalita Kumari** (minor) through her father, viz., Shri Bhola Kamat for the issuance of a writ of Habeas Corpus or direction(s) of like nature against the respondents herein for the protection of his minor daughter who has been kidnapped. The grievance in the said writ petition is that on 11.05.2008, a written report was submitted by the petitioner before the officer in-charge of the police station concerned who did not take any action on the same. Thereafter, when

the Superintendent of Police was moved, an FIR was registered. According to the petitioner, even thereafter, steps were not taken either for apprehending the accused or for the recovery of the minor girl child.

3) A two-Judge Bench of this Court in, **Lalita Kumari** vs. Government of Uttar Pradesh & Ors. (2008) 7 SCC 164, after noticing the disparity in registration of FIRs by police officers on case to case basis across the country, issued notice to the Union of India, the Chief Secretaries of all the States and Union Territories and Director Generals of Police/Commissioners of Police to the effect that if steps are not taken for registration of FIRs immediately and the copies thereof are not handed over to the complainants, they may move the Magistrates concerned by filing complaint petitions for appropriate direction(s) to the police to register the case immediately and for apprehending the accused persons, failing which, contempt proceedings must be initiated against such delinquent police officers if no sufficient cause is shown.

4) Pursuant to the above directions, when the matter was heard by the very same Bench in **Lalita Kumari** vs. Government of Uttar Pradesh & Ors. (2008) 14 SCC 337, Mr. S.B. Upadhyay, learned senior counsel for the petitioner, projected his claim that upon receipt of information by a police officer in-charge of a police station disclosing a cognizable offence, it is imperative for him to register a case under [Section 154](#) of the Code and placed reliance upon two-Judge Bench decisions of this Court in [State of Haryana vs. Bhajan Lal](#) 1992 Supp. (1) SCC 335, **Ramesh Kumari** vs. State (NCT of Delhi) (2006) 2 SCC 677 and **Parkash Singh Badal vs. State of Punjab** (2007) 1 SCC 1. On the other hand, Mr. Shekhar Naphade, learned senior counsel for the State of Maharashtra submitted that an officer in- charge of a police station is not obliged under law, upon receipt of

information disclosing commission of a cognizable offence, to register a case rather the discretion lies with him, in appropriate cases, to hold some sort of preliminary inquiry in relation to the veracity or otherwise of the accusations made in the report. In support of his submission, he placed reliance upon two-Judge Bench decisions of this Court in [P. Sirajuddin vs. State of Madras](#) (1970) 1 SCC 595, [Sevi vs. State of Tamil Nadu](#) 1981 Supp SCC 43, [Shashikant vs. Central Bureau of Investigation](#) (2007) 1 SCC 630, and [Rajinder Singh Katoch vs. Chandigarh Admn.](#) (2007) 10 SCC 69. In view of the conflicting decisions of this Court on the issue, the said bench, vide order dated 16.09.2008, referred the same to a larger bench.

5) Ensuing compliance to the above direction, the matter pertaining to **Lalita Kumari** was heard by a Bench of three-Judges in [Lalita Kumari vs. Government of Uttar Pradesh & Ors.](#) (2012) 4 SCC 1 wherein, this Court, after hearing various counsel representing Union of India, States and Union Territories and also after adverting to all the conflicting decisions extensively, referred the matter to a Constitution Bench while concluding as under:-

“97. We have carefully analysed various judgments delivered by this Court in the last several decades. We clearly discern divergent judicial opinions of this Court on the main issue: whether under [Section 154](#) CrPC, a police officer is bound to register an FIR when a cognizable offence is made out or he (police officer) has an option, discretion or latitude of conducting some kind of preliminary inquiry before registering the FIR.

98. The learned counsel appearing for the Union of India and different States have expressed totally divergent views even before this Court.

This Court also carved out a special category in the case of medical doctors in the aforementioned cases of Santosh Kumar and Suresh Gupta where preliminary inquiry had been postulated before registering an FIR. Some counsel also submitted that the CBI Manual also envisages some kind of preliminary inquiry before registering the FIR.